

Janardan Prasad Tiwari vs Arti Devi on 20 September, 2022

Bench: Shree Chandrashekhar, Ratnaker Bhengra

IN THE HIGH COURT OF JHARKHAND AT RANCHI
(Civil Appellate Jurisdiction)

FA No. 292 of 2017

Janardan Prasad Tiwari, son of Kamta Prasad Tiwari, resident of village Maheshpur, PS Rajganj, PO Duludih, District Dhanbad, now at present residing at Swami Samarth Nagar, near Lokhandwala Circle, Andheri West, PS Andheri, PO Mumbai-53, Maharashtra Plaintiff/Appellant

Versus

Arti Devi, wife of Janardan Prasad Tiwari, resident of Shankar Medical Chandori Road, PO & PS Giridih, District Giridih, Jharkhand Defendant/Respondent

CORAM : HON'BLE MR. JUSTICE SHREE CHANDRASHEKHAR
HON'BLE MR. JUSTICE RATNAKER BHENGRA

For the Appellant : Mr. S.N.Das, Advocate
For the Respondent : Mr. Yogesh Modi, Advocate.

ORDER

th 20 September 2022 Per, Shree Chandrashekhar,J.

This First Appeal challenges the judgment dated 7 th July 2017 passed in Title Matrimonial Suit No. 300 of 2014 by which the suit was dismissed.

2. The appellant is the husband of Arti Devi who is the sole respondent in the present proceeding. The appellant filed an application under section 10 of the Hindu Marriage Act, 1955 seeking an order of judicial separation from his wife on the ground of unsoundness of her mind.

3. In Title Matrimonial Suit No. 300 of 2014 the learned Additional Family Court Judge has held as under:

"13. It emerges from the aforesaid oral and documentary evidence that there is no evidence of mental disorder of defendant except the oral testimonies of plaintiff and his witnesses which is also not believable in view of the fact that after marriage in the year 2001 till 2013, plaintiff did not know the mental stage of defendant and even defendant during this period gave birth to a female child, who is living with her. Plaintiff and his witnesses have not whispered a single incident occurred on any date in their evidence nor the same has been pleaded in the pleading."

4. The appellant has assailed the aforesaid findings recorded in Title Matrimonial Suit No. 300 of 2014 on the ground that oral testimony of the appellant which was sufficiently corroborated by other

two witnesses should have been accepted by the Court and, that, there is no requirement in law to produce documentary evidence so as to prove mental disorder or 2 FA 292 of 2017 unsoundness of mind of a person.

5. Section 10 of the Hindu Marriage Act, 1955 provides that either party to a marriage may present a petition for a decree for judicial separation on any of the grounds specified in sub-section (1) to Section 13. Clause (iii) of sub-section (1) to Section 13 of the Hindu Marriage Act, 1955 provides that any marriage may be dissolved by a decree of divorce on the ground that other party has been incurably of unsound mind, or, has been suffering continuously or intermittently from mental disorder of such a kind and to such an extent that the petitioner cannot reasonably be expected to live with the respondent.

6. Explanation (a) of clause (iii) of sub-section (1) to Section 13 of the Hindu Marriage Act, 1955 defines "mental disorder" to mean mental illness, arrested or incomplete development of mind, psychopathic disorder, or any other disorder or disability of mind and includes schizophrenia. Explanation (b) of clause (iii) of sub-section (1) to Section 13 of the Act defines the expression "psychopathic disorder" to mean a persistent disorder or disability of mind (whether or not including sub-normality of intelligence) which results in abnormally aggressive or seriously irresponsible conduct on the part of the other party and whether or not it requires or is susceptible to medical treatment.

7. The relevant portions of section 13(1)(iii) of the Hindu Marriage Act, 1955 are extracted as under:

"13. Divorce.--(1) Any marriage solemnized, whether before or after the commencement of this Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party--

.....

(iii) has been incurably of unsound mind, or has been suffering continuously or intermittently from mental disorder of such a kind and to such an extent that the petitioner cannot reasonably be expected to live with the respondent.

Explanation.--In this clause,--

(a) the expression "mental disorder" means mental illness, arrested or incomplete development of mind, psychopathic disorder or any other disorder or disability of mind and includes schizophrenia;

(b) the expression "psychopathic disorder" means a persistent disorder or disability of mind (whether or not including sub-

normality of intelligence) which results in abnormally aggressive or seriously irresponsible conduct on the part of the other party, and whether or not it requires or is susceptible to medical treatment;

....."

8. During the trial of Title Matrimonial Suit no. 300 of 2014, the 3 FA 292 of 2017 appellant produced three witnesses including himself as PW1. He adduced in evidence a copy of the reply received under RTI along with a copy of the RTI application dated 24th April 2015 and few photographs. The appellant deposed in the Court that his wife was treated at Central Institute of Psychiatry at Ranchi but this fact came to his knowledge on 8 th October 2013 and, that, the mental disorder of his wife was concealed by her father. Along with the appellant the other two witnesses examined by him deposed in the Court that the respondent was treated at Central Institute of Psychiatry at Ranchi. Through the documentary evidence, as noticed hereinabove, the appellant tried to establish that his wife was admitted in the Central Institute of Psychiatry at Ranchi for treatment to her mental illness.

9. In every case of unsoundness of mind, be it a mental disorder, psychopathic disorder or any kind of disability of mind, it may not be necessary to produce the documentary evidence in the form of a certification by the doctor who treated the other party. But in a case in which a party has taken specific stand about the other party suffering from psychopathic disorder or mental illness of like nature it may be imperative for the party seeking dissolution of marriage to produce scientific evidence to establish such disorder in the other party. The law as envisaged under clause (iii) of sub-section (1) to Section 13 of the Hindu Marriage Act, 1955 requires evidence in this regard to prove that unsoundness of mind, mental disorder, or psychotropic disorder is of such a kind and its intensity is to such an extent that it is not reasonably possible for the party seeking divorce to live in the company of the other party.

10. In "Sharda v. Dharmpal" (2003) 4 SCC 493 Hon'ble Supreme Court has Observed as under:

"11. It is trite law that for the purpose of grant of a decree of divorce what is necessary is that the petitioner must establish that unsoundness of mind of the respondent is incurable or his/her mental disorder is of such a kind and to such an extent that he cannot reasonably be expected to live with his/her spouse. Medical testimony for arriving at such finding although may not be imperative but undoubtedly would be of considerable assistance to the court. We may, however, hasten to add that such medical testimony being the evidence of experts would not leave the court from the obligation of satisfying itself on the point in issue beyond reasonable doubt. Relevance of medical evidence, therefore, cannot be disputed.

12. A sound mind indisputably is a key to a happy married life. A party to the marriage must, thus, have normal and sound mind so as to live a happy marital life. A disorder of thought, behaviour and 4 FA 292 of 2017 mind leading to unsoundness of mind may give rise to a cause of action for filing an application under Section 13(1)(iii) of the Hindu Marriage Act. The burden of proof of the existence of requisite degree of mental disorder is on the spouse making the claim on that state of fact"

11. The family Court Judge has taken a reasonable view in the matter on the basis of the materials placed by the appellant during trial of Title Matrimonial Suit No. 300 of

2014. We find no ground to disagree with the findings recorded by the Additional Principal Judge, Family Court, Dhanbad in this regard and, accordingly, FA No. 292 of 2017 is dismissed.

(Shree Chandrashekhar, J.) (Ratnaker Bhengra, J.) Jharkhand High Court, Ranchi
Dated: 20th September, 2022 Sharda/Nibha-NAFR